EX TEMPORE

THE UNITED METHODIST CHURCH ZIMBABWE EPISCOPAL AREA HEALTH BOARD
versus
HANNAH MAFUNDA

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 26 May 2026 and 24 June 2026

Opposed Application

T.L. Mazadza, for the Applicant
P.E. Chivhenge, for the Respondent

DEME J: On 26 May 2026 I granted an application for rei vindicatio in the following manner:

> "1. The application for rei vindicatio be and is hereby granted.
>
> 2. The Respondent be and is hereby ordered, within forty-eight hours of the granting of this order or of service of this order on her, to deliver the Applicant's property namely Toyota double cab Registration Number AGQ 1581, a laptop and a cell phone handset to the Applicant at its premises at 10 Harvey Brown, Milton Park, Harare.
> 3. In the event of the Respondent failing to comply with paragraph 2, the Sheriff or his or her lawful Deputy be and is hereby ordered, authorised and required to seize the aforesaid items from the Respondent or from whomsoever and wherever it be found and to deliver the same to the Applicant at the aforesaid premises.
> 4. In the execution of the provisions of paragraph 3, The Sheriff or his or her lawful Deputy be and is hereby authorised to enlist the services of and/or assistance of the Zimbabwe Republic Police and / or any other service provider as he or she may deem necessary.
> 5. Any costs accruing as a result of the enforcement of this order shall be paid by the Respondent.
> 6. The Respondent shall pay costs of suit."

I will now proceed to supply reason therefor. The applicant approached this court seeking the relief for *rei* vindicatio. More particularly, Applicant seeks the following relief:

"1. The Application for rei vindicatio be and is hereby granted.

2. The Respondent be and is hereby ordered, within 24 hours of the granting of this order (or of service of this order on her) to deliver the Applicant's property, being a Toyota Double Cab (Registration number AGQ 1581), a laptop and a cell phone handset to the Applicant at its premises, at 10, Harvey Brown, Milton Park, Harare.
3. In the event of the Respondent failing to comply with paragraph 2 hereof, the Sheriff or his lawful deputy be and is hereby ordered, authorized and required, to seize the aforesaid items from the Respondent, or from whomsoever and wherever it be found, and to deliver same to the Applicant at the aforesaid premises.
4. In the execution of the provisions of paragraph 3 above, Sheriff or his lawful deputy be and is hereby authorised to enlist the services and/or assistance of the Zimbabwe Republic Police and/or any other service providers as he may deem necessary.
5. Any costs attendant upon giving effect to this order, shall be paid by the Respondent.
6. The Respondent shall pay the costs of this application on an attorney and client scale."

The Applicant averred that the Respondent was engaged in April 2022 as a Health Board Coordinator in Zimbabwe. In the course of her employment, the Applicant averred that it entrusted her with the assets mentioned above solely for the performance of her duties. These assets now formed the subject matter of the proceedings.

On 8 September 2025, the Respondent was charged with misconduct under two counts. The first alleged contravention was of section 4(a) of the National Code, being conduct inconsistent with the fulfilment of the express or implied terms of her contract of employment. The second alleged contravention was of section 4(e) of the National Code, namely absence from duty for five or more consecutive working days without leave or reasonable cause within a year.

The Applicant affirmed that the Respondent was duly summoned to a disciplinary hearing but failed to attend. She was accordingly found guilty and dismissed from employment. Following her dismissal, the Applicant contended that all benefits and entitlements arising from the employment relationship ceased forthwith. The respondent never challenged the decision that was passed during the hearing. According to the Applicant, the Respondent refused, neglected, or otherwise failed to surrender the property belonging to the Applicant despite formal demands.

The Applicant asserted that its claim is founded upon the principle of ownership, namely that no person may be deprived of their property without consent. According to the

Applicant, the right of ownership is absolute and entitles the owner to reclaim property from any person in possession thereof.

The Respondent opposed the application. In her opposing affidavit, she asserted that the Applicant's version of events was misleading; omits material facts; selectively narrates circumstances; and ultimately sought to abuse the process of this Honourable Court in order to obtain relief that ought properly to be pursued through established labour dispute procedures. She contended that the Applicant had failed to demonstrate any lawful basis upon which rei vindicatio may be invoked against her at this stage. The application, she averred, was premature and contrived to frustrate a pending statutory process.

It is common cause that the Respondent was employed as a Health Board Coordinator. Her fixed-term contract expired on 31 March 2023. She averred, however, that she continued thereafter to discharge her duties uninterrupted, received full remuneration, and by operation of law her employment was converted into a permanent contract. The Applicant, she argued, deliberately ignored this fact because acknowledging it would expose its unlawful conduct.

The Respondent alleged that on 14 January 2025, the Applicant purported to issue a letter alleging that a "fixed-term contract" would expire on 31 March 2025. The Respondent affirmed that no such contract existed. The Respondent claimed that she ceased rendering services on that date, under protest and pending legal challenge.

The Respondent reported the matter to a Labour Officer as a case of unlawful termination of employment contract. The dispute was ultimately referred to compulsory arbitration. The issues before arbitration concern the validity of the termination of employment contract. The matter remains pending according to the Respondent. She further averred that the Applicant misrepresented to the tribunal that she had been reinstated and sought postponements on that basis. The matter was eventually set down for hearing on 26 November 2025 according to the Respondent.

The Respondent maintained that she retained possession of the motor vehicle, laptop, and handset lawfully as tools of trade pending final resolution of the employment dispute. Should she be reinstated, she argued, her continued possession of the property would remain justified. She did not dispute the Applicant's ownership of the assets but contended that her

possession was neither wrongful nor unlawful, being conditional upon the outcome of the arbitration proceedings.

In response, the Applicant argued that the pending appeal and arbitration proceedings did not bar the present application, and insisted that the Respondent is bound to surrender the property because her right to possess it ceased upon dismissal. The applicant maintained that the respondent was lawfully dismissed from employment. The Applicant additionally averred that the vehicle was provided to the respondent exclusively as a tool of trade to perform duties for the applicant and business travel. According to the Applicant, The Respondent had permission to keep the vehicle overnight at her residence only on occasions where business travel would be concluded late at night.

The Applicant insisted that the vehicle was only used for the transportation of medication and medical equipment to its various hospitals across the country. The applicant alleged that the car was not a contractual benefit for the respondent. The applicant claimed that once an employee has been suspended or dismissed from employment, any employer's assets extended to such employee for business use should be returned.

The applicant maintained that the application satisfies all the requirements for the application for *rei vindicatio* in that the applicant is the owner of the assets in question and the respondent is in possession of the assets without the owner's consent. The applicant also took the view that the respondent's opposition is meant to frustrate the applicant. The applicant also held the view that the unlawful retention of the vehicle by the respondent was highly prejudicial to the applicant and the beneficiaries in remote areas.

The sole issue that exercises my mind is whether the present application satisfies the basic requirements of the application for *rei vindicatio*.

The basic requirements for the present application were beautifully set out by the Supreme Court in the case of Savanhu v Hwange Colliery Company[1] where the court remarked that:

> "The *actio rei vindicatio* is an action brought by an owner of property to recover it from any person who retains possession of it without his consent. It derives from the principle that an owner cannot be deprived of his property without his consent. As it was put in *Chetty v Naidoo*[2]:

[1] SC8/15.
[2] 1974 3 SA 13 (A)

> "It is inherent in the nature of ownership that possession of the *res* should normally be with the owner, and it follows that no other person may withhold it from the owner unless he is vested with some right enforceable against the owner (e.g., a right of retention or a contractual right).
>
> The owner, in instituting a *rei vindicatio*, need, therefore, do no more than allege and prove that he is the owner and that the defendant is holding the *res* - the onus being on the defendant to allege and establish any right to continue to hold against the owner… (cf. *Jeena v Minister of Lands*, 1955 (2) SA 380 (AD) at pp 382E, 383)…"

The onus was therefore on the appellant to prove a legally recognized right of retention of the motor vehicle. The additional defences available to the appellant, namely, that he was not in possession of the property at the time of commencement of the action; or that the respondent is not the owner of the property were not pursued, it being common cause that at the relevant time, the appellant was in possession of the respondent's vehicle."

It is common cause that the Respondent is in possession of the assets claimed by the Applicant. The question of ownership has not been disputed by the Respondent. The only defence of the Respondent is that she is retaining the assets pending the finalisation of the contractual dispute.

It is not disputed that the Respondent was charged with misconduct in September 2025. The Respondent is not disputing that she was served with notice of hearing for the disciplinary proceedings for September 2025. The Respondent does not dispute that she did not attend the disciplinary proceedings which occurred in September 2025. It is further common cause that upon her failure to attend the hearing, the Applicant granted default judgment which saw Respondent's dismissal from employment. It is not disputed that the Respondent never, at any point, challenged the September dismissal.

Mr. Chivhenge argued that the dismissal was a nullity. However, it is apparent that after her dismissal in September 2025, she took no action to challenge the dismissal. The Respondent cannot seek to challenge her dismissal through the present application. There are defined procedures where such dismissal may be challenged. The Respondent chose not to use such defined parameters to assert her rights.

Arguing that the dismissal was a nullity is tantamount to inviting this court to make a finding which falls within the labour law contrary to the provisions of Section 89 of the Labour Act. The question of whether the dismissal was lawful cannot be resolved by this court. The Respondent is aware of the existing structures which should resolve such a

dispute. She failed to do so at the appropriate time. She cannot seek to resurrect that question before a wrong forum.

This court does have jurisdiction to hear the application for *rei* vindicatio. Reference is made to the cases of *NEC for the Construction Industry v Zimbabwe Nantong International (Pvt) Ltd*[3], and *Nyahora v CFI Holdings (Pvt) Ltd*[4]. *In the case of Nyahora v CFI Holdings Ltd* supra, the Supreme Court postulated the following remarks:

> "The right of an individual to approach the High Court seeking relief, other than that specifically set out in s 89(1)(a) of the Act, has not been abrogated. Nothing in s 89(6) takes away the right of an employer or employee to seek civil relief based on the application of pure principles of civil law, except in respect of those applications and appeals that are specifically provided for in the Labour Act. Nor is there contained in s 89 any provision expressly authorizing the Labour Court to deal with an application for the common law remedy of *rei vindicatio*. Such applications fall squarely within the jurisdiction of the High Court. "

Mr. Chivhenge relied on the authority of *DHL International (Pvt) Ltd* v *Madzikanda*[5] where this court ruled that:

> "It appears to me that in *casu*, the right of the applicant to possess is the motor vehicle is subject to the rights that the respondent has to the vehicle in terms of his employment with the applicant. Whilst the applicant has deposed to the fact that the respondent has been dismissed from employment, that dismissal is subject to appeal. It is still in dispute and so are the entitlements of the respondent under the contract of employment. In contrast, I may at this stage mention that on the same day that I heard argument in this matter, I also heard argument in the matter of the matter of *Medical Investments Limited v Rumbidzayi Pedzisai* HH 26/2010 wherein I found that the applicant in that case was entitled to vindicate its vehicle from the respondent, a former employee, as the employer- employee relationship between the parties had terminated on account of the resignation of the respondent. In that matter, the status of the former employee as such was not in doubt. In *casu*, it appears to me that the status of the respondent has not been finally determined as it is pending the appeal before the Labour Court. As such, the facts of this matter are distinguishable from that of the *Medical Investments Limited* case.
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> On the basis of the foregoing, even if this court had jurisdiction to determine this dispute at common law, I would have found that the respondent has successfully discharged the onus on him to prove the right to possess the motor vehicle against the applicant, pending determination of the appeal that is pending in the Labour Court."

[3] *SC 1/18.*
[4] SC81/14.
[5] HH51/10.

In *casu*, the dismissal of the Respondent is not being challenged. Thus, the case of *DHL International (Pvt) Ltd* v *Madzikanda* supra is easily distinguishable. In that case, the dismissal was being challenged by the former employee. In the present case, the Respondent did not challenge the dismissal of September 2025. I agree with Ms Mazadza's submissions in this regard. Thus, there is no case which is pending seeking to challenge the September dismissal. On this basis, the Respondent has no defence to the present application. The contract was terminated in September 2025. The decision for her dismissal is still extant and has not been set aside.

In the circumstances, I saw no reason to deny the relief sought by the Applicant. The Respondent failed to assert her rights at the material time using legally established structures. She has no-one except herself to blame. Consequently, I granted the relief sought with necessary consequential amendments on the question of costs. In my view, costs on an ordinary scale are reasonably sufficient.

DEME J:…..…….

Matlaw, Applicant's Legal Practitioners.
Rubaya and Chatambudza, Respondent's Legal Practitioners.